

“conscious disregard for the safety of others where the defendant is aware of the probable dangerous consequences of his or her conduct and here or she willfully fails to avoid such consequences.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1228.)

Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grievess v. Superior Court* (1984) 157 Cal. App. 3d 159, 166.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal. App. 3d 864, 872.) The pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal. App. 3d 306, 317.) The plaintiff must plead specific facts from which it can be inferred that there was a conscious disregard for injury that was probable rather than merely foreseeable. (*Dawes v. Superior Court* (1980) 111 Cal. App. 3d 82, 89-90.)

Furthermore, “whether the corporation will be liable for punitive damages depends, not on the nature of the consequences, but rather on whether the malicious employee belongs to the leadership group of “officers, directors, and managing agents.” (*Cruz v. Homepage* (2000) 83 Cal. App. 4th 160, 168) The class of employees who may subject the corporation to punitive damage is limited to those officers, directors and managing agents who exercise substantial discretionary authority over decisions that ultimately determine corporate policy not just an ordinary supervisory level employee. (*White v. Ultamar* (1999) 21 Cal. 4th 563, 573.) A corporate employer may be liable for punitive damages based on acts of an employee if the employer had advanced knowledge of the employee’s unfitness or an officer, director or managing agent of the employer authorized or ratified the wrongful conduct or was personally culpable. (Civ. Code. §3294(b); *Grievess v. Superior Court* (1984) 157 Cal. App. 3d 159, 167.)

The claim for punitive damages is based on the allegations that Defendants negligently sold, gave and furnished alcoholic beverages to obviously intoxicated minor Milo on November 20, 2023. (FAC, ¶ 40.) Plaintiff vaguely alleges that Defendants knew that by serving alcohol to a minor, they were creating a significant risk to the public and others such as Plaintiff and that the acts and omissions were done with conscious disregard for safety of Plaintiff and others. (Id at ¶¶ 44-45.) These allegations are vague and conclusory. Moreover, there are no facts showing that the acts or omissions were committed or ratified by an officer, director or managing agent of BJ’s. Accordingly, the Motion to Strike is granted with leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVME2510810	GERARDI VS MILO	MOTION TO STRIKE

Tentative Ruling: SEE ABOVE.

4.

CASE #	CASE NAME	HEARING NAME
CVME2511991	MEDINA VS NEGRETE	DEMURRER

Tentative Ruling: NOTICE OF SETTLEMENT FILED 08/04/26; OFF-CALENDAR.